

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Elizabeth Hopkins	Team: Team # 5	CCRB Case #: 200811925	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 08/12/2008 7:56 PM	Location of Incident: 11 MetroTech	18 Mo. SOL 2/12/2010	Precinct: 84
Date/Time CV Reported Tue, 08/12/2008 7:56 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/18/2008 3:48 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Mary King	00864	936872	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ulysses Dadacay	15121	918279	032 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POF Mary King	Discourtesy: Police Officer Mary King spoke obscenely and/or rudely to § 87(2)(b)	A . Unsubstantiated

Synopsis

§ 87(2)(b) is a 911 operator employed by the New York Police Department who works at 11 MetroTech in Brooklyn. On August 12, 2008, at approximately 7:49 p.m., § 87(2)(b) dispatched a radio run call to Police Officer Mary King and alleged that this officer referred to her as “bitch” over the telephone (allegation A). At 7:56 p.m. on August 12, 2008, § 87(2)(b) supervisor, § 87(2)(b) called the Internal Affairs Bureau to make a complaint against the unidentified officer. However, § 87(2)(b) could not definitively state that the officer had called § 87(2)(b) the discourteous word. The recommendation to unsubstantiate allegation A § 87(2)(g) § 87(2)(b) Mediation was not offered to § 87(2)(b) § 87(2)(g)

Summary of Complaints

On August 12, 2008, at approximately 7:56 p.m., 911 Supervisor § 87(2)(b) called the Internal Affairs Bureau (IAB) Command to file this complaint (encs. 5a-b) on behalf of § 87(2)(b). On August 18, 2008, CCRB received this case (encs. 6a-b). On September 19, 2008, § 87(2)(b) was interviewed at the CCRB (encs. 7a-d).

On August 12, 2008, at approximately 7:56 p.m., § 87(2)(b) worked as a 911 dispatcher at 11 Metrotech in Brooklyn and dispatched a radio job (call for help) to Police Officer Mary King (identified through investigation). § 87(2)(b) did not obtain this officer's name and/or shield number, but said this officer was assigned to the 32nd Precinct Sector J and that this officer's voice was familiar to her. As § 87(2)(b) read back the radio job to Police Officer King this day, she alleged that Police Officer King said, "What are you holding at the location?" § 87(2)(b) replied, "32J. I'm holding a call for help at 145th Street and Seventh Avenue." Police Officer King then said, "Bitch show me going" and § 87(2)(b) replied, "I heard that," but had no further conversation with this officer.

Results of Investigation

§ 87(2)(b)

§ 87(2)(b) who is 911 Supervisor, a civilian employee of the New York Police Department, provided a phone statement on April 3, 2009 and again on July 2, 2009 (enc. 7a-b). § 87(2)(b) stated in both conversations that, although she heard the officer say the word “bitch,” she did not clearly understand the officer to be speaking to § 87(2)(b). The officer may have been speaking to someone else while her hands were on the radio. § 87(2)(b) called IAB to file the complaint after listening to the taped conversation because § 87(2)(b) was obviously offended and § 87(2)(b) therefore felt it was her responsibility as supervisor to report the incident. However, she was not certain that the officer had called § 87(2)(b) the discourteous word.

Police Officer Statements:

Police Officer Mary King:

Police Officer Mary King was interviewed at the CCRB on December 2, 2008 (encs. 8d-e) and had no knowledge regarding § 87(2)(b)'s incident. Police Officer King is a § 87(2)(b) Hispanic female, who is assigned at the 32nd Precinct. Police Officer King stated on August 12, 2008, that she worked the 32nd Precinct Sectors J, K, and M from 3:00 p.m. until 11:35 p.m., assigned to marked patrol car number 1352, with partner, Police Officer Ulysses Dadacay and was dressed in uniform. Although, Police Officer King denied knowing anything about this incident she did admit that she was assigned to 32nd Precinct Sector J on the date of this incident and responded to a radio call for help at 145th

Street and Eighth Avenue in Manhattan at about 7:50 p.m., as written in her memo book (encs. 8a-c), but denied the allegations as alleged by § 87(2)(b)

Police Officer Ulysses Dadacay

Police Officer Ulysses Dadacay was interviewed at the CCRB on February 25, 2009 (encs. 9a-b) and had no knowledge regarding § 87(2)(b)'s incident. Police Officer Dadacay is a § 87(2)(b) Asian male, who is assigned at the 32nd Precinct. Police Officer Dadacay stated on August 12, 2008, that he worked the 32nd Precinct Sectors J, K, and M from 3:00 p.m. until 11:35 p.m., assigned to a marked patrol car 1352, with partner, Police Officer Mary King and was dressed in uniform.

Sergeant Philip Terpos

Sergeant Philip Terpos, who worked at the 32nd Precinct as the desk officer on August 12, 2008, was contacted by § 87(2)(b) after she initially listened to the recorded conversation on that date. § 87(2)(b) informed Sgt. Terpos that the discourteous word had been stated, and Sgt. Terpos noted in his memo book that she asked him to produce an audible tape for further investigation. § 87(2)(g) his memo book entry, which stated the tape of the conversation was inaudible to him (encs. 12a-b).

Police Department Records

The 32nd Precinct Tour 3's roll call dated August 12, 2008 (encs. 11a-l), confirmed that Police Officers Mary King and Ulysses Dadacay worked this day and were assigned to Sectors J, K, and M in marked patrol car number 1352.

Sprint number § 87(2)(b) dated August 12, 2008 (encs. 10a, 10c), confirmed that a report of a radio job (call for help) was made at West 145th Street and Eighth Avenue in Manhattan. The recording of the radio calls was received at the CCRB on August 22, 2008; however, the calls did not include the radio run listed on Sprint printout § 87(2)(b) that of the radio run from § 87(2)(b) to the 32nd Precinct, Sector J. When the investigator attempted to retrieve the correct CD, the audio had been erased as per NYPD policy. Subsequent review of the CD by the reassigned investigator corroborates that the CD does not document the call § 87(2)(b) placed, and all calls are by a male operator. (enc. 10) Relevant audio has been subsequently erased per the New York Police Department's policy. Desk Sergeant Philip Terpos states in his memo book that the radio call was inaudible (encs. 12a-b).

§ 87(2)(b)'s CCRB History/Criminal History

§ 87(2)(b) has no prior CCRB case (enc. 4) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Police Officer Mary King's History

Police Officer Mary King has no prior CCRB case (enc. 3). According to the CCRB's Officer History printout, Police Officer King has been employed by the New York City Police Department for four years.

Conclusions and Recommendations

Police Officer Identification:

§ 87(2)(b) did not identify the subject officer by name, but provided the officer's sector and radio run location that she dispatched to this officer. Sprint number § 87(2)(b) corroborates this information. Police Officer Mary King and her partner, Police Officer Ulysses Dadacay were assigned to sectors J, K, and M, on the date of incident and were interviewed based on their assignments. Police Officer King had no knowledge of this incident involving § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Undisputed and Disputed Facts:

It is not disputed that 911 operator § 87(2)(b) dispatched a radio job to Police Officer Mary King who was assigned to sector J on August 12, 2008. § 87(2)(g)

Assessment of Evidence:

§ 87(2)(g)

Allegation A: Police Officer Mary King spoke obscenely and/or rudely to § 87(2)(b)

According to Patrol Guide Procedure 203-09 (enc. 2), officers are prohibited from using discourteous remarks § 87(2)(g)

§ 87(2)(b). It is therefore, recommended that allegation A be closed as unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: